

Court No. - 3

Case :- WRIT - C No. - 31178 of 2021

Petitioner :- Akash Sharma

Respondent :- State Of U.P And 5 Others

Counsel for Petitioner :- Sanjay Kr. Srivastava

Counsel for Respondent :- C.S.C.,Kartikeya Saran

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following relief:

"i) issue a writ, order or direction in the nature of Certiorari, calling for the record and to quash order impugned dated 19.8.2021 passed by the respondent no. 4 containing the direction for disconnecting the power supply of petitioner temporarily by removing the meter and for completing the process of permanent disconnection.

ii) issue a writ, order or direction in the nature of mandamus commanding the respondents particularly the respondent no. 4 to continue the aforesaid supply of petitioner's electricity connection of 5KW with its Book/Connection No. 1107/2029331836 without any default in accordance with law."

Sri Kartikeya Saran, learned counsel for the respondent Nos.2, 3 & 4/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No. 3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 18.5.2022

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